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SUPERIOR COURT OF WASHINGTON FOR EVERGREEN COUNTY

MARIA RIVERA, Plaintiff, v. **CEDAR HOLLOW REMODELING LLC,** Defendant.	**No. 00-2-00000-0 SAMPLE** **PLAINTIFF'S MOTION FOR PARTIAL SUMMARY JUDGMENT**

I. RELIEF REQUESTED

Plaintiff Maria Rivera asks the Court to rule, under CR 56, that Defendant Cedar Hollow Remodeling LLC breached the parties' Remodeling Agreement and that Ms. Rivera does not owe the $9,400 "Change Order 2" charge. Ms. Rivera asks that the amount of her damages be reserved for trial.

II. STATEMENT OF FACTS

Ms. Rivera hired Cedar Hollow to remodel her kitchen. The parties signed a written agreement on March 3, 2025, for a fixed price of $48,000. **Ex. A** at 1, § 2. Cedar Hollow promised to finish the work by June 30, 2025. **Ex. A** at 1, § 4.

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The agreement controls extra work. No change in the work or the price is valid "unless it is in a written change order signed by both parties before the work is done." **Ex. A** at 2, § 7.

Ms. Rivera paid $36,000 on the agreed schedule. **Ex. A** at 1, § 3; Rivera Decl. ¶ 3. Cedar Hollow did not finish by June 30. On July 2, it told her by text that it wanted more money for electrical work. Ms. Rivera answered the same day: "Please send the change order before doing any extra work." **Ex. B** at 1. No change order was sent. **Ex. B** at 1; Rivera Decl. ¶ 4.

On July 8, Cedar Hollow sent an invoice for $9,400 labeled "Change Order 2." Ms. Rivera never signed it. Rivera Decl. ¶ 5. On July 11, Cedar Hollow wrote that its crew would not return until she paid. **Ex. B** at 2. The crew never returned. The upper cabinets, countertops, and backsplash were not installed. Rivera Decl. ¶ 6. A licensed contractor has quoted $21,750 to finish the contract work. **Ex. C**.

III. ISSUES

1. Did Cedar Hollow breach the agreement when it missed the completion date and stopped work with the contract work unfinished?

2. May Cedar Hollow charge $9,400 for extra work when no change order was signed, as Section 7 requires?

IV. EVIDENCE RELIED UPON

This motion relies on the Declaration of Maria Rivera, below, and **Exhibits A** through C.

V. AUTHORITY

A. Summary judgment is proper because the material facts are in writing and are not disputed.

Summary judgment is proper when there is no genuine issue of material fact and the

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moving party is entitled to judgment as a matter of law. CR 56(c). The moving party bears the initial burden of showing the absence of an issue of material fact. Young v. Key Pharms., Inc., 112 Wn.2d 216, 225, 770 P.2d 182 (1989). Ms. Rivera meets that burden with the signed agreement and Cedar Hollow's own messages.

B. Cedar Hollow breached the agreement.

A breach of contract is actionable if the contract imposes a duty, the duty is breached, and the breach proximately causes damage to the claimant. Nw. Indep. Forest Mfrs. v. Dep't of Labor and Indus., 78 Wn. App. 707, 712, 899 P.2d 6 (1995). Washington follows the objective manifestation theory of contracts, so the Court looks to the words the parties actually used and gives them their ordinary meaning. Hearst Commc'ns, Inc. v. Seattle Times Co., 154 Wn.2d 493, 503-04, 115 P.3d 262 (2005).

The words here are plain. Section 4 set a completion date of June 30, 2025. Section 2 set the work and the price. Cedar Hollow did not finish on time, and on July 11 it refused to return unless it was paid money the agreement did not require. **Ex. B** at 2. Ms. Rivera was left with an unfinished kitchen and must pay another contractor to complete the work. **Ex. C**. Each element is met.

C. The $9,400 charge fails because no change order was signed.

"Washington law generally requires contractors to follow contractual notice provisions unless those procedures are waived." Mike M. Johnson, Inc. v. County of Spokane, 150 Wn.2d 375, 386, 78 P.3d 161 (2003). Knowing about a claim does not excuse compliance; the Supreme Court held that actual notice is not an exception. Id. at 377. Waiver by conduct "requires unequivocal acts of conduct evidencing an intent to waive." Id. at 386 (quoting Absher Constr. Co. v. Kent Sch. Dist. No. 415, 77 Wn. App. 137, 143, 890 P.2d 1071 (1995)).

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Cedar Hollow cannot show waiver. Ms. Rivera did the opposite of waiving Section 7: she insisted on it in writing. **Ex. B** at 1. Her knowledge that Cedar Hollow wanted more money changes nothing under Mike M. Johnson.

D. Damages should be reserved for trial.

The measure of damages in a construction contract case follows Restatement (Second) of Contracts § 348. Eastlake Constr. Co. v. Hess, 102 Wn.2d 30, 32, 47, 686 P.2d 465 (1984). The owner may recover the reasonable cost of completing performance if that cost is not clearly disproportionate to the probable loss in value. Id. at 47. Ms. Rivera will prove that amount at trial, with credit for the $12,000 of the contract price she has not paid.

VI. CONCLUSION

The Court should rule that Cedar Hollow breached the agreement, rule that Ms. Rivera does not owe the $9,400 charge, and reserve damages for trial.

DATED this 3rd day of November, 2026.

/s/ Maria Rivera

_____

Maria Rivera, Plaintiff Pro Se

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DECLARATION OF MARIA RIVERA

I, Maria Rivera, declare:

1. I am the Plaintiff. I am over 18 and competent to testify. I have personal knowledge of these facts.

2. **Exhibit A** is a true copy of the agreement I signed with Cedar Hollow. **Exhibit B** is a true copy of my text messages with its owner. **Exhibit C** is a true copy of the estimate I received to finish the work.

3. I paid Cedar Hollow $36,000 on the schedule in Section 3 of the agreement.

4. After my July 2, 2025 text asking for a change order, Cedar Hollow never sent me one to sign.

5. I never signed "Change Order 2" or any other change order.

6. Cedar Hollow's crew last worked at my home on July 10, 2025. The upper cabinets, countertops, and backsplash were never installed.

I declare under penalty of perjury under the laws of the State of Washington that the foregoing is true and correct.

DATED this 3rd day of November, 2026.

/s/ Maria Rivera

_____

Maria Rivera, Plaintiff Pro Se

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CERTIFICATE OF SERVICE

I declare that on November 3, 2026, I served a true and correct copy of this document on Cedar Hollow Remodeling LLC. I declare under penalty of perjury under the laws of the State of Washington that the foregoing is true and correct.

DATED this 3rd day of November, 2026.

/s/ Maria Rivera

_____

Maria Rivera, Plaintiff Pro Se

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EXHIBIT A

Remodeling Agreement dated March 3, 2025

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CEDAR HOLLOW REMODELING LLC

KITCHEN REMODELING AGREEMENT

Owner: Maria Rivera Contractor: Cedar Hollow Remodeling LLC Date: March 3, 2025

1. Work.

Contractor will remodel the kitchen at Owner's home, including electrical rough-in, flooring, base and upper cabinets, countertops, and backsplash, as shown on Schedule 1.

2. Price.

The fixed contract price for the Work is $48,000.

3. Payments.

$12,000 at signing; $12,000 when demolition is complete; $12,000 when base cabinets are installed; $12,000 on final completion.

4. Completion.

Contractor will complete the Work by June 30, 2025.

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5. Materials.

Contractor will supply all materials on Schedule 1. Title passes to Owner on installation.

6. Cleanup.

Contractor will keep the work area clean and remove all debris on completion.

7. Changes.

No change in the Work or the contract price is valid unless it is in a written change order signed by both parties before the work is done.

8. Entire agreement.

This agreement is the parties' whole agreement and may be changed only in writing.

Owner	Contractor
/s/ Maria Rivera	/s/ Glen Ashby, Member
March 3, 2025	March 3, 2025

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EXHIBIT B

Text messages, July 2 to July 11, 2025

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Text messages: Maria Rivera and Glen Ashby (Cedar Hollow)

Glen Ashby Jul 2, 2025, 8:14 AM

We found old wiring behind the wall. That is extra. Probably around $9k. Need that covered before we go further.

Maria Rivera Jul 2, 2025, 8:41 AM

Please send the change order before doing any extra work. I need to see it in writing, like our contract says.

Glen Ashby Jul 2, 2025, 9:02 AM

Will do.

Maria Rivera Jul 7, 2025, 6:20 PM

I still have no change order. We are past the June 30 date. When will the cabinets go in?

Glen Ashby Jul 8, 2025, 7:55 AM

Invoice for Change Order 2 is in your email. $9,400.

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Maria Rivera Jul 8, 2025, 12:10 PM

That is an invoice. I never signed a change order and I did not agree to this.

Glen Ashby Jul 11, 2025, 4:37 PM

Crew is not coming back until the $9,400 is paid.

Maria Rivera Jul 11, 2025, 5:02 PM

Our contract does not say that. Please finish the work.

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EXHIBIT C

Estimate to complete the work

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ALDER CREEK FINISH CARPENTRY

Estimate to complete kitchen

Prepared for: Maria Rivera Date: August 4, 2025

Item	Amount
Upper cabinets, supply and install	$9,200
Quartz countertops, template and install	$7,850
Tile backsplash	$2,400
Final electrical trim and inspection	$1,300
Punch list and cleanup	$1,000
Total	$21,750

This estimate covers only the work listed in the original scope. It includes no upgrades.

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